

MERCHANT AGREEMENT

BETWEEN

KITCHYN.APP LTD (KITCHYN)

AND

[MERCHANT LEGAL NAME] (MERCHANT)

PREPARED BY:

[Name of preparing counsel / firm]

[Firm address]

[Telephone]

[Email]

THIS MERCHANT AGREEMENT (the "Agreement") is made this _____ day of _____ 20____ (the "Effective Date")

BETWEEN:

KITCHYN.APP LIMITED, a private limited liability company incorporated under the Companies and Allied Matters Act, 2020 (as amended), with its registered address at No. 22, T.Y. Danjuma Street, Asokoro, FCT-Abuja, Nigeria ("Kitchyn", which expression shall, where the context so admits, include its successors-in-title and permitted assigns); and

[**MERCHANT LEGAL NAME**], being [a company incorporated under the Companies and Allied Matters Act, 2020 (as amended)] / [a business name registered under the Companies and Allied Matters Act, 2020 (as amended)] / [an individual carrying on business under the name stated above] (delete as appropriate), with its address at [MERCHANT ADDRESS] (the "Merchant", which expression shall, where the context so admits, include its successors-in-title, personal representatives, and permitted assigns).

Kitchyn and the Merchant are each individually referred to as a "Party" and collectively as the "Parties".

WHEREAS:

- (A) Kitchyn owns and operates a proprietary technology platform that enables restaurants, food vendors, and other merchants to establish online storefronts, receive and manage orders from customers, accept payments through Kitchyn's payment partners, and, where selected, access logistics and delivery coordination services;
- (B) the Merchant carries on the business of preparing and selling food, beverages, and related products, and wishes to use the Platform to market and sell its Products to Customers; and
- (C) the Parties wish to record the terms on which the Merchant shall access and use the Platform.

IT IS HEREBY AGREED AS FOLLOWS:

1. DEFINITIONS AND INTERPRETATION

1.1 In this Agreement, unless the context otherwise requires, the following words and expressions shall have the meanings set out below:

"Applicable Law" means all laws, regulations, regulatory guidelines, directives, and codes of practice of the Federal Republic of Nigeria (and, where relevant, any other jurisdiction in which the Merchant operates) applicable to a Party or to the performance of this Agreement, including CAMA, the NDPA, the FCCPA, and all food safety, health, and NAFDAC regulations;

"Business Day" means any day other than a Saturday, Sunday, or public holiday declared in the Federal Republic of Nigeria;

"Chargeback" means any reversal, recall, or clawback of a Customer payment by a bank, card scheme, payment processor, or regulator, together with any associated fine, fee, or penalty;

"Collection" means the moment at which a Rider takes physical possession of an Order from the Merchant and confirms pickup through the Platform (or such other pickup-confirmation mechanism as Kitchyn may operate), and "Collected" shall be construed accordingly;

"Confidential Information" means any non-public business, technical, financial, operational, or customer information disclosed by or on behalf of one Party to the other, in any form, whether or not marked confidential;

"Customer" means any person who places an Order for Products through the Merchant's storefront on the Platform;

"Delivery Fee" means the fee charged to a Customer for the delivery of an Order;

“Fee Schedule” means the schedule of Fees set out in Schedule 1 to this Agreement and/or published on the Platform, as amended from time to time in accordance with Clause 7;

“Fees” means the commissions, service charges, transaction fees, delivery commissions, the Subscription Fee, and any other charges payable by the Merchant to Kitchyn as set out in the Fee Schedule or this Agreement;

“Force Majeure Event” means an event beyond the reasonable control of a Party, including war, riots, civil unrest, fire, flood, epidemic or pandemic, strikes (other than of the affected Party’s own workforce), government action, or failure of internet, power, or telecommunications networks, which makes it impossible or impracticable for that Party to perform its obligations;

“Free Period” means the period of three (3) months commencing on the date stated in the Fee Schedule (or, if none is stated, on the Effective Date), during which the Subscription Fee is waived in accordance with Clause 7.9;

“In-House Delivery” means delivery of an Order by the Merchant itself or through riders or contractors engaged directly by the Merchant;

“Intellectual Property” means all patents, trademarks, service marks, trade names, logos, software, source code, designs, databases, content, know-how, and all other intellectual property rights, whether registered or unregistered, anywhere in the world;

“Joint Promotion” means a Promotion that Kitchyn has expressly initiated and designated in writing as a joint partnership promotion in accordance with Clause 8.3;

“Merchant Content” means all trade names, logos, menus, Product images, descriptions, prices, and other materials uploaded to the Platform by or on behalf of the Merchant;

“Merchant Proceeds” means, in respect of any Order, the amounts collected from the Customer for that Order — excluding any Delivery Fee for Platform Delivery, and including the Merchant’s share of any Delivery Fee for In-House Delivery under Clause 6.8 — less the Fees and any other deductions permitted under this Agreement;

“NDPA” means the Nigeria Data Protection Act, 2023, together with any regulations and guidelines issued under it;

“Order” means a request placed by a Customer through the Platform to purchase Products from the Merchant;

“Platform” means the Kitchyn website, mobile applications, merchant dashboard, APIs, and any related technology, tools, or services made available by Kitchyn from time to time;

“Platform Delivery” means delivery of an Order by a Rider coordinated by or through Kitchyn;

“Platform Data” means all data and analytics generated by or through the Platform, including Order histories, transaction records, Customer accounts and profiles, ratings, reviews, and usage data, but excluding Merchant Content;

“Products” means the food, beverages, and other items that the Merchant lists and sells through the Platform;

“Promotion” means any discount, price reduction, voucher, coupon, free-delivery offer, loyalty benefit, or other promotional incentive offered to Customers in respect of the Merchant’s Products, however initiated or displayed;

“Reserve” means any amount withheld by Kitchyn pursuant to Clause 7.7;

“Subscription Fee” means the monthly platform subscription fee agreed with the Merchant at onboarding and stated in the Fee Schedule, payable in accordance with Clause 7.9;

“Rider” means a delivery rider or driver engaged, coordinated, or dispatched by or through Kitchyn (including through third-party logistics providers engaged by Kitchyn) to collect and deliver Orders. A rider engaged directly by the Merchant is not a Rider for the purposes of this Agreement.

1.2 In this Agreement: (a) clause headings are for convenience only and shall not affect interpretation; (b) words importing the singular include the plural and vice versa; (c) “including” and similar expressions are illustrative and shall not limit the sense of the words preceding them; (d) references to Clauses and Schedules are to clauses of, and schedules to, this Agreement; and (e) references to any statute include that statute as amended, re-enacted, or replaced.

1.3 This Agreement, together with the Fee Schedule and Kitchyn’s Terms and Conditions and Privacy Policy published on the Platform (as amended from time to time in accordance with Clause 20), constitutes the entire agreement governing the Merchant’s use of the Platform. In the event of any conflict, this Agreement shall prevail over the published Terms and Conditions.

1.4 Where the Merchant is not an incorporated company, references to the “Merchant” are to the proprietor(s) of the registered business name or to the individual named above (as applicable), who shall be personally bound by, and personally liable under, this Agreement.

2. APPOINTMENT AND USE OF THE PLATFORM

2.1 Kitchyn grants the Merchant a limited, revocable, non-exclusive, non-transferable, and non-sublicensable right to access and use the Platform, for the duration of this Agreement, solely to list Products, receive and fulfil Orders, and interact with Customers in accordance with this Agreement.

2.2 The Merchant retains control of, and full responsibility for, its own Products, pricing, and branding. Kitchyn’s role is limited to providing the technology, payment collection (as limited agent under Clause 7.1), and, where applicable, logistics coordination that enable the Merchant to reach Customers. Kitchyn is not the seller of the Products and is not a party to the contract of sale between the Merchant and any Customer.

2.3 Kitchyn may, in its sole discretion, determine the presentation, ranking, featuring, and promotion of storefronts and Products on the Platform. Kitchyn gives no guarantee of any level of visibility, Orders, sales, or revenue.

2.4 Kitchyn may, in its sole discretion and without liability, decline, remove, or suspend any Product listing or Merchant Content that Kitchyn reasonably considers unlawful, unsafe, misleading, infringing, or otherwise harmful to Customers, Kitchyn, or the Platform.

2.5 The Merchant is responsible for all activity conducted through its account and shall keep its login credentials, account information, and any Kitchyn-issued devices or materials secure and confidential. The Merchant shall notify Kitchyn immediately upon becoming aware of any unauthorised use of its account.

3. MERCHANT OBLIGATIONS

3.1 The Merchant shall, at all times during the term of this Agreement:

- provide and maintain accurate, complete, and up-to-date information about its business, Products, pricing, and availability;
- ensure that all Products comply with all applicable food safety, health, hygiene, labelling, packaging, and consumer protection requirements under Applicable Law, including all applicable NAFDAC regulations;
- prepare and package each Order properly and make it ready for Collection or delivery within the preparation times agreed with Kitchyn or displayed on the Platform;
- hold and maintain all business permits, licences, registrations (including tax registrations), and approvals required by Applicable Law to operate its business and sell the Products;

- treat Customers fairly and respond to complaints, refund requests, and disputes promptly and professionally;
- clearly disclose ingredients and allergen information for each Product where reasonably possible, to enable Customers to make informed choices;
- maintain in force adequate insurance appropriate to its business, including product liability insurance, and provide evidence of such insurance to Kitchyn on reasonable request; and
- not use the Platform for any unlawful, fraudulent, or deceptive purpose, or in any manner that could damage or impair the Platform or Kitchyn's reputation.

3.2 As between the Parties, the Merchant is solely responsible for the quality, safety, preparation, packaging, labelling, and legality of the Products. Save as expressly provided in Clauses 6.4 and 6.5, Kitchyn has no responsibility for the Products at any time.

4. MERCHANT REPRESENTATIONS AND WARRANTIES

4.1 The Merchant represents, warrants, and undertakes that:

- it is (i) a company duly incorporated, or (ii) a business name duly registered, under the Companies and Allied Matters Act, 2020, or (iii) an individual with full legal capacity, as indicated in the Fee Schedule, and the person accepting or executing this Agreement is duly authorised to bind the Merchant (or is the Merchant);
- its entry into and performance of this Agreement does not and will not breach any Applicable Law or any agreement to which it is a party;
- it owns, or holds all rights and consents necessary to use and to license, all Merchant Content, and the Merchant Content does not and will not infringe the rights (including Intellectual Property rights and privacy rights) of any third party; and
- all information it has provided or will provide to Kitchyn is and will be true, accurate, and not misleading.

4.2 Each representation and warranty in this Clause 4 is deemed repeated each time the Merchant lists a Product or fulfils an Order.

5. ORDERS, CUSTOMER INTERACTIONS AND REFUNDS

5.1 Customers place Orders directly with the Merchant through the Platform. The contract for the sale of Products is formed between the Merchant and the Customer. Kitchyn acts only as a technology facilitator and as the Merchant's limited payment collection agent.

5.2 Kitchyn shall not be liable for incorrect Orders arising from Merchant error, out-of-stock Products, delays caused by the Merchant or third parties, or Customer dissatisfaction relating to food quality, preparation, or allergens.

5.3 The Merchant authorises Kitchyn, acting reasonably and in accordance with its published refund policy, to investigate and resolve Customer complaints, and to issue refunds, credits, or replacements to Customers on the Merchant's behalf. Where the cause of the refund is attributable to the Merchant (including wrong, missing, defective, unsafe, or poorly packaged items, or preparation delay), the refund amount and any related costs may be deducted from Merchant Proceeds in accordance with Clause 7.6. Where the cause of the refund is a delivery failure occurring after Collection under Platform Delivery, Clause 6.5 applies and no deduction shall be made from Merchant Proceeds.

5.4 Kitchyn shall make available to the Merchant, through the merchant dashboard, records of refunds and deductions affecting the Merchant's account, and the Merchant may dispute any deduction within seven (7) days of it appearing, failing which the deduction shall be deemed accepted.

6. LOGISTICS, DELIVERY, DELIVERY FEES AND TRANSFER OF RISK

6.1 Orders may be fulfilled by: (a) Platform Delivery, where Kitchyn provides or coordinates delivery through Riders; or (b) In-House Delivery, where the Merchant delivers Orders itself or through riders or contractors engaged directly by the Merchant. The delivery mode(s) enabled for the Merchant are as stated in the Fee Schedule or as configured on the Platform from time to time.

6.2 Delivery times displayed to Customers are estimates only and are not guaranteed.

6.3 The Merchant shall ensure that each Order is complete, correctly prepared, properly packaged and labelled, and ready for dispatch at the agreed time.

6.4 Transfer of risk (Platform Delivery).

For Platform Delivery, risk in each Order shall pass from the Merchant to Kitchyn at the moment of Collection. For the avoidance of doubt: (a) prior to Collection, all risk of and liability for the Order — including its quality, completeness, safety, packaging, and timely readiness — rests solely with the Merchant; and (b) from Collection onwards, Kitchyn shall be responsible for loss of, damage to, or non-delivery of the Order occurring in transit, provided the Order was handed to the Rider complete and in good condition.

6.5 Where an Order is lost, damaged, or not delivered after Collection through no fault of the Merchant, Kitchyn shall bear the cost of any resulting Customer refund or replacement, and such cost shall not be deducted from Merchant Proceeds. Kitchyn's liability to the Merchant under this Clause in respect of any Order shall not exceed the Merchant Proceeds for that Order.

6.6 Kitchyn shall have no liability under Clauses 6.4 and 6.5 to the extent the loss or damage arises from: (a) inadequate or unsuitable packaging, labelling, or sealing by the Merchant; (b) an Order that was incorrect, incomplete, or unsafe at Collection; or (c) the inherent perishable nature of Products where the delivery was completed within a reasonable time.

6.7 In-House Delivery.

Where an Order is fulfilled by In-House Delivery, all risk of and responsibility for the Order, including its delivery, remains with the Merchant at all times, and Clauses 6.4 to 6.6 shall not apply. The Merchant shall ensure that its riders and contractors deliver Orders safely, promptly, and professionally, and shall remain responsible for their acts and omissions.

6.8 Delivery Fees.

(a) For Platform Delivery, Kitchyn sets, collects, and retains the Delivery Fee in full for its own account; the Delivery Fee does not form part of Merchant Proceeds. (b) For In-House Delivery, Kitchyn shall collect the Merchant's Delivery Fee from the Customer on the Merchant's behalf and shall remit it to the Merchant as part of Merchant Proceeds, less a delivery commission of ten percent (10%) of the Delivery Fee (or such other rate as stated in the Fee Schedule).

7. FEES, PAYMENT, SET-OFF AND RESERVES

7.1 The Merchant appoints Kitchyn as its limited agent solely for the purpose of collecting payments from Customers through Kitchyn's payment partners. Payment by a Customer to Kitchyn constitutes good discharge of the Customer's payment obligation to the Merchant.

7.2 The Merchant shall pay Kitchyn the Fees set out in the Fee Schedule. Kitchyn may deduct the Fees at source from amounts collected on the Merchant's behalf.

7.3 Kitchyn may amend the Fee Schedule by giving the Merchant not less than seven (7) days' written notice (which may be given by email and/or through the merchant dashboard). If the Merchant does not accept the amended Fees, it may terminate this Agreement by written notice with effect from the date the amendment

takes effect, without penalty. The Merchant's continued use of the Platform after the effective date of the amendment constitutes acceptance of the amended Fees.

7.4 Kitchyn shall remit Merchant Proceeds to the Merchant's designated bank account within the settlement cycle stated in the Fee Schedule, or, if none is stated, within seven (7) Business Days of the relevant Order being completed. Kitchyn shall make available to the Merchant periodic settlement statements through the merchant dashboard.

7.5 All payments are subject to verification and fraud checks, and to reversal where an Order is cancelled, refunded in accordance with Clause 5.3, or found to be fraudulent.

7.6 Set-off.

Kitchyn may set off and deduct from any Merchant Proceeds or other amounts payable to the Merchant: (a) the Fees; (b) refunds and credits attributable to the Merchant under Clause 5.3; (c) Chargebacks attributable to the Merchant's Orders, save where the underlying loss falls to Kitchyn under Clause 6.5; (d) the cost of Promotions funded by the Merchant under Clause 8; (e) any fines or penalties imposed on Kitchyn by reason of the Merchant's acts or omissions; (f) any accrued and unpaid Subscription Fee; and (g) any other sums due from the Merchant to Kitchyn under this Agreement.

7.7 Reserve.

Kitchyn may withhold a reasonable Reserve from Merchant Proceeds where: (a) Kitchyn reasonably suspects fraud or material breach and is investigating (in which case the Reserve shall be held only for so long as reasonably necessary to complete the investigation); or (b) the Merchant's account shows an elevated level of Chargebacks or refunds. Following termination, Kitchyn may hold a Reserve for up to ninety (90) days to cover Chargebacks, refunds, and other contingent liabilities, after which the balance (less lawful deductions) shall be released promptly.

7.8 The Merchant is responsible for accounting for and paying all taxes (including VAT and applicable withholding tax) due on its sales in accordance with Applicable Law. Each Party is responsible for its own income and business taxes. The Parties shall cooperate in good faith to provide any documentation reasonably required for tax compliance, including in respect of withholding tax on the Fees.

7.9 Subscription Fee.

The Merchant shall pay Kitchyn the monthly Subscription Fee agreed at onboarding and stated in the Fee Schedule. The Subscription Fee is waived in full for the Free Period; no Subscription Fee accrues or is payable in respect of the Free Period. From the first day following expiry of the Free Period, the Subscription Fee shall accrue monthly and be payable in advance, and Kitchyn may collect it by deduction from Merchant Proceeds under Clause 7.6 or by invoice. The Subscription Fee is non-refundable, including for partial months and periods of suspension under Clause 16. If any Subscription Fee remains unpaid fourteen (14) days after falling due, Kitchyn may suspend the Merchant's access to the Platform until payment is received in full, without prejudice to its other rights and remedies.

8. PROMOTIONS

8.1 Kitchyn may from time to time make promotional tools available on the Platform. The Merchant may create or opt into Promotions in respect of its Products.

8.2 Merchant-funded by default.

Unless a Promotion is a Joint Promotion, the full cost of every Promotion applied to the Merchant's Products — including discounts, vouchers, free or discounted delivery subsidies, and loyalty benefits — shall be borne solely by the Merchant and may be deducted from Merchant Proceeds under Clause 7.6. Participation in a platform-wide promotional campaign, or the display of a Promotion on the Platform, does not of itself make Kitchyn responsible for any part of its cost.

8.3 Joint Promotions.

A Promotion shall constitute a Joint Promotion only where Kitchyn has expressly initiated it and designated it as a joint partnership promotion in a written instrument (which may be electronic) issued by Kitchyn before the Promotion launches, specifying the cost-sharing ratio and duration. In the absence of such written designation, no course of dealing, marketing material, or oral statement shall create any cost-sharing obligation on Kitchyn. Kitchyn's share of a Joint Promotion is limited strictly to the ratio and cap stated in the written designation.

8.4 Kitchyn may modify or withdraw any promotional tool, and may end any Promotion, at any time on notice through the Platform, without liability for Orders not yet placed.

9. INTELLECTUAL PROPERTY AND PLATFORM DATA

9.1 All Intellectual Property in and to the Platform — including the Kitchyn name, logo, software, source code, design, databases, and content — is and remains the exclusive property of Kitchyn or its licensors. Nothing in this Agreement transfers any ownership of such Intellectual Property to the Merchant.

9.2 The Merchant grants Kitchyn a non-exclusive, royalty-free licence, for the duration of this Agreement, to use, reproduce, and display the Merchant Content for the purposes of operating the Platform and promoting the Merchant's storefront in Kitchyn's marketing channels. On termination, this licence ends, save that Kitchyn may continue to use Merchant Content in materials already produced for up to ninety (90) days and in historical records as required by law.

9.3 Platform Data.

As between the Parties, all Platform Data is and remains the property of Kitchyn. Kitchyn shall make reasonable reporting on the Merchant's own sales and Orders available through the merchant dashboard. Nothing in this Clause limits either Party's obligations under Clause 11 in respect of personal data.

9.4 Neither Party may copy, reproduce, reverse-engineer, or otherwise exploit the other Party's Intellectual Property except as expressly permitted by this Agreement or with prior written consent.

10. NON-CIRCUMVENTION

10.1 The Merchant shall not, during the term of this Agreement and for twelve (12) months after its termination: (a) use any Customer personal data obtained through the Platform to solicit, market to, or transact with Customers outside the Platform; or (b) insert into Orders, or otherwise direct at Customers acquired through the Platform, any materials inviting them to order outside the Platform.

10.2 Nothing in this Clause prevents the Merchant from carrying on its business through its own premises, channels, or other platforms generally, or from serving any customer whose relationship with the Merchant was not acquired through the Platform.

11. DATA PROTECTION AND PRIVACY

11.1 Each Party shall comply with the NDPA and, where applicable to Customers located outside Nigeria, any other applicable data protection law (including the EU/UK GDPR), in respect of personal data processed under this Agreement. Each Party acts as an independent data controller of the personal data it processes for its own purposes.

11.2 Kitchyn will share with the Merchant only the Customer information reasonably necessary to fulfil an Order (such as name, contact number, and delivery address). The Merchant shall use such information solely to fulfil that Order, shall not sell, rent, or disclose it to any third party, and shall securely delete it when no longer required for fulfilment or legal compliance.

11.3 Each Party shall implement appropriate technical and organisational measures to protect personal data in its possession and shall notify the other Party without undue delay, and in any event within seventy-two (72) hours, upon becoming aware of a personal data breach affecting shared Customer information.

11.4 Each Party is responsible for its own compliance with the NDPA, including any registration, audit, and breach-notification obligations owed to the Nigeria Data Protection Commission and to data subjects.

12. CONFIDENTIALITY

12.1 Each Party shall keep the other Party's Confidential Information confidential, use it solely for the purposes of this Agreement, and disclose it only to those of its officers, employees, and advisers who need to know it and are bound by equivalent obligations of confidence.

12.2 Clause 12.1 does not apply to information that: (a) is or becomes public other than through breach of this Agreement; (b) was lawfully known to the receiving Party before disclosure; (c) is lawfully received from a third party free of restriction; or (d) is required to be disclosed by law, regulation, or court or regulatory order, provided the disclosing Party is given prompt notice where lawful.

12.3 The obligations in this Clause 12 shall survive termination of this Agreement for five (5) years, and indefinitely in respect of trade secrets.

13. LIMITATION OF LIABILITY

13.1 Nothing in this Agreement excludes or limits either Party's liability for death or personal injury caused by its negligence, for fraud or fraudulent misrepresentation, or for any other liability that cannot be excluded or limited under Applicable Law.

13.2 Subject to Clause 13.1, and to the fullest extent permitted by law, Kitchyn shall not be liable for: (a) indirect, incidental, special, or consequential losses, including loss of profit, revenue, goodwill, or business opportunity; (b) service interruptions, technical failures, or downtime of the Platform; (c) the Merchant's conduct or any dispute between the Merchant and a Customer; or (d) losses arising from the Merchant's failure to keep its account secure.

13.3 Subject to Clauses 13.1 and 13.4, Kitchyn's total aggregate liability to the Merchant arising out of or in connection with this Agreement in any twelve (12)-month period shall not exceed the total Fees paid by the Merchant to Kitchyn in the three (3) months immediately preceding the event giving rise to the claim.

13.4 Kitchyn's liability under Clauses 6.4 and 6.5 (transfer of risk) is not subject to the cap in Clause 13.3 but is limited, per Order, to the Merchant Proceeds for that Order, and shall be discharged primarily by not deducting the relevant refund from Merchant Proceeds.

13.5 Neither Party may bring a claim under this Agreement more than six (6) months after the date on which it became aware, or ought reasonably to have become aware, of the facts giving rise to the claim, save for claims for unpaid remittances or unpaid Fees, and claims under Clause 14, which may be brought within the applicable statutory limitation period.

14. INDEMNITY

14.1 The Merchant shall indemnify and hold harmless Kitchyn, its affiliates, and their respective officers, employees, and partners from and against all claims, losses, damages, fines, penalties, costs, and expenses (including reasonable legal fees) arising out of or in connection with:

- the Merchant's breach of this Agreement or of any Applicable Law;
- the quality, safety, preparation, packaging, labelling, or legality of the Products, or any illness, injury, or damage caused by them;
- any claim that the Merchant Content infringes the rights of any third party;

- any dispute between the Merchant and a Customer, save to the extent the dispute arises from a delivery failure after Collection for which Kitchyn is responsible under Clause 6.5;
- any regulatory fine or sanction imposed on Kitchyn by reason of the Merchant's acts or omissions, including under the NDPA or NAFDAC regulations; and
- the Merchant's negligence, misconduct, or fraud.

14.2 Kitchyn shall notify the Merchant of any indemnified claim and shall be entitled to control the defence and settlement of the claim. The Merchant shall provide all cooperation reasonably requested. The Merchant shall not settle any claim in a manner that imposes any obligation or admission on Kitchyn without Kitchyn's prior written consent.

15. FORCE MAJEURE

15.1 Neither Party shall be liable for any failure or delay in performing its obligations under this Agreement (other than payment obligations accrued prior to the event) caused by a Force Majeure Event. The affected Party shall notify the other Party as soon as reasonably possible and shall use reasonable endeavours to mitigate the effect and resume performance.

15.2 If a Force Majeure Event continues for more than thirty (30) consecutive days, either Party may terminate this Agreement by written notice with immediate effect.

16. TERM, SUSPENSION AND TERMINATION

16.1 This Agreement takes effect on the Effective Date (or, where accepted electronically, on the date of the Merchant's acceptance) and continues until terminated in accordance with this Clause.

16.2 Either Party may terminate this Agreement for convenience by giving the other Party not less than thirty (30) days' written notice.

16.3 Kitchyn may suspend or restrict the Merchant's access to the Platform, or terminate this Agreement, immediately on written notice where: (a) the Merchant commits a material breach of this Agreement; (b) Kitchyn reasonably suspects fraud, unlawful activity, or a food safety risk; (c) the Merchant repeatedly receives serious Customer complaints that it fails to remedy; (d) the Merchant becomes insolvent, enters any arrangement with creditors, or ceases to carry on business; or (e) suspension or termination is required by Applicable Law or a competent authority.

16.4 Suspension does not relieve the Merchant of its obligations. During any suspension pending investigation, Kitchyn may withhold payouts in accordance with Clause 7.7.

16.5 On termination: (a) the Merchant's right to use the Platform ceases immediately; (b) the Merchant shall pay all outstanding Fees and other sums due; and (c) Kitchyn shall remit to the Merchant all Merchant Proceeds then held, less permitted deductions and any Reserve under Clause 7.7, within thirty (30) days of the effective date of termination, with any Reserve balance released in accordance with Clause 7.7.

16.6 Clauses 1, 9, 10, 11, 12, 13, 14, 16.5, 16.6, 21, 22, and 23, and any other provision intended by its nature to survive, shall survive termination of this Agreement.

17. RELATIONSHIP OF THE PARTIES

17.1 Nothing in this Agreement creates a partnership, joint venture, employment, or (save for the limited payment collection agency in Clause 7.1) agency relationship between the Parties. Each Party is an independent business responsible for its own staff, taxes, and obligations.

18. ASSIGNMENT

18.1 The Merchant may not assign, transfer, or deal with this Agreement or any right or obligation under it without Kitchyn's prior written consent. Kitchyn may assign this Agreement, in whole or in part, to an affiliate or in connection with a merger, acquisition, reorganisation, or sale of all or part of its business, on written notice to the Merchant.

19. NOTICES

19.1 Any notice under this Agreement shall be in writing and delivered: (a) by email to the address designated by each Party; (b) by courier to the registered address of the receiving Party; or (c) in the case of notices from Kitchyn to the Merchant, by posting to the merchant dashboard accompanied by an email alert.

19.2 A notice is deemed received: (a) if sent by email before 5:00 p.m. on a Business Day, on that day, and otherwise on the next Business Day, provided no delivery-failure message is received; (b) if sent by courier, on the date of recorded delivery; and (c) if posted to the merchant dashboard with an email alert, on the next Business Day after posting.

20. AMENDMENTS

20.1 Kitchyn may update this Agreement, the Fee Schedule, or its published Terms and Conditions from time to time to reflect changes in its services, business, or Applicable Law. Kitchyn shall give the Merchant not less than fourteen (14) days' written notice of material changes (or seven (7) days for Fee changes under Clause 7.3).

20.2 If the Merchant does not accept a material change, it may terminate this Agreement by written notice with effect from the date the change takes effect, without penalty. The Merchant's continued use of the Platform after the effective date of a change constitutes acceptance of the change.

21. SEVERABILITY, WAIVER AND EXECUTION

21.1 If any provision of this Agreement is held invalid or unenforceable, that provision shall be modified to the minimum extent necessary to make it enforceable (or, if incapable of modification, severed), and the remainder of this Agreement shall continue in full force and effect.

21.2 No failure or delay by a Party in exercising any right under this Agreement shall operate as a waiver of that right, nor shall any single or partial exercise preclude any further exercise.

21.3 This Agreement may be executed in counterparts and by electronic means, including by electronic or digital signature or by click-acceptance through the Platform, in accordance with the Evidence Act 2011 (as amended by the Evidence (Amendment) Act 2023). Each counterpart, and any electronic acceptance recorded by the Platform, shall constitute a valid and binding original.

22. DISPUTE RESOLUTION

22.1 The Parties shall first attempt to resolve any dispute arising out of or in connection with this Agreement amicably through good-faith discussions between senior representatives within fourteen (14) days of written notice of the dispute.

22.2 Any dispute not resolved under Clause 22.1 shall be referred to and finally resolved by arbitration in accordance with the Arbitration and Mediation Act 2023, by a sole arbitrator appointed by agreement of the Parties or, failing agreement within fourteen (14) days, by the Chairman of the Chartered Institute of Arbitrators (UK), Nigeria Branch. The seat of arbitration shall be Abuja, Nigeria, and the language of the arbitration shall be English. The award shall be final and binding.

22.3 Nothing in this Clause prevents either Party from seeking urgent injunctive or other interim relief from a court of competent jurisdiction, including to protect its Intellectual Property, Confidential Information, or personal data.

23. GOVERNING LAW

23.1 This Agreement shall be governed by and construed in accordance with the laws of the Federal Republic of Nigeria. Where the Merchant operates or sells to Customers outside Nigeria, the Merchant remains solely responsible for compliance with the laws of that jurisdiction.

24. ENTIRE AGREEMENT

24.1 This Agreement, together with the Fee Schedule and the documents referred to in Clause 1.3, constitutes the entire agreement between the Parties in relation to its subject matter and supersedes all prior discussions, understandings, and agreements. Each Party confirms it has not relied on any representation not set out in this Agreement, provided that nothing in this Clause excludes liability for fraudulent misrepresentation.

SCHEDULE 1 — FEE SCHEDULE AND COMMERCIAL TERMS

This Schedule is specific to the Merchant named in this Agreement, is completed at onboarding, forms part of the Agreement, and may be amended in accordance with Clauses 7.3 and 20.

1. Merchant legal status: ☐ Incorporated company ☐ Registered business name ☐ Individual.

RC/BN No. (if applicable): _____

2. Commission on each Order: _____

% of the Order value (excluding any Delivery Fee).

3. Monthly Subscription Fee: ₦: _____

per month, payable in accordance with Clause 7.9.

4. Free Period: three (3) months commencing on _____ and expiring on _____.

The Subscription Fee first becomes payable on the day following expiry of the Free Period.

5. Delivery mode(s) enabled: ☐ Platform Delivery ☐ In-House Delivery ☐ Both.

6. In-House Delivery commission: ten percent (10%) of each Delivery Fee, unless otherwise stated here: _____ %.

7. Other service or transaction fees: _____

8. Settlement cycle: Merchant Proceeds shall be remitted within _____ Business Days of Order completion.

9. Designated Merchant bank account: Bank: _____ Account Name: _____

Account Number: _____

10. Agreed Order preparation time: _____

minutes from Order confirmation.

11. Any Joint Promotion cost-sharing arrangements shall be recorded in a separate written designation issued by Kitchyn pursuant to Clause 8.3.

IN WITNESS WHEREOF, the Parties have executed this Agreement on the date first written above.

FOR AND ON BEHALF OF KITCHYN.APP LIMITED

Name: _____

Signature: _____

Designation: _____

Date: _____

In the presence of (Witness):

Name: _____

Address: _____

Signature: _____

Date: _____

FOR AND ON BEHALF OF [MERCHANT LEGAL NAME]

Name: _____

Signature: _____

Designation: _____

Date: _____

In the presence of (Witness):

Name: _____

Address: _____

Signature: _____

Date: _____